

CASE SUMMARY

State v. Devanand

SC No. 262/2020 | FIR No. 198/2019, PS Gandhi Nagar | Court of the Addl. Sessions Judge-05 (Electricity), East, Karkardooma Courts, Delhi

COURT	Court of the Additional Sessions Judge-05 (Electricity), East District, Karkardooma Courts, Delhi
JUDGE	Sh. Ashish Rastogi, Addl. Sessions Judge-05 (Electricity)
DATE OF JUDGMENT	13 March 2026 (date of inspection / offence: 4 July 2019 at about 16.20 hours)
PARTIES	State (BSES Yamuna Power Ltd.) v. Devanand S/o Sher Singh, R/o H. No. 9/5323, Old Seelampur, Gandhi Nagar, Delhi-110031 (registered consumer/owner of the inspected premises, H. No. 9/5512, 2nd Floor, Old Seelampur)
STATUTES INVOKED	Sections 135, 150 & 2(15) (and third proviso to s. 135(1)), Electricity Act, 2003; Section 24, IPC; Section 106, Indian Evidence Act, 1872; Sections 251, 313 & 41A, Cr.P.C.
RESULT	Convicted under Section 135 read with Section 150 (abetment), Electricity Act, 2003. Civil liability on the theft bill (Rs. 3,15,653/-) settled and the amount deposited during trial. Matter posted for hearing on quantum of sentence.

CHARGE BEFORE THE COURT

Whether Jagdish — the user/tenant who abstracted electricity at the inspected premises but was not arrested — dishonestly abstracted electricity by bypassing the metering system — the premises' four installed meters standing with their outgoing supply disconnected while the second-floor load ran directly through a service cable joined with an illegal wire; whether the accused Devanand, the registered consumer/owner of those premises, abetted that theft by consciously permitting it, so as to be guilty under Section 135 read with Section 150 of the Electricity Act, 2003; and whether, once the prosecution proved an unauthorised means of abstraction, Devanand discharged the onus cast by the presumption in the third proviso to Section 135(1).

FACTS

On 4 July 2019 at about 16.20 hours, an inspection team of BSES Yamuna Power Ltd. (the complainant company) headed by Sh. Anil Kumar (Assistant Manager) inspected the premises. Four electricity meters were installed at the premises but their outgoing supply stood disconnected, and the second-floor supply was found running directly through a service cable joined with an illegal wire; the user/tenant Jagdish did not allow the inspection team to check the (locked) meters. The connected load was 3.692 KW, used for domestic purposes; the proceedings were videographed and an Inspection Report, Load Report and Seizure Memo (with an advisory notice) were prepared at the spot. Following the applicable tariff, the company assessed a theft demand of Rs. 3,15,653/-, which went unpaid, and its Authorised Officer filed a complaint under Section 135 read with Section 150 of the Act.

The user/tenant Jagdish was not arrested; the prosecution proceeded against Devanand as the registered consumer/owner of the premises. A notice under Section 251 Cr.P.C. was served and Devanand pleaded not guilty. The inspecting officials and the Investigating Officer were examined; the ownership of the premises was proved through the seized ownership documents. Under Section 313 Cr.P.C. Devanand denied the allegations and pleaded false implication, and led no defence evidence. Counsel submitted that the theft bill had been settled, the settlement amount deposited.

REASONING OF THE COURT

HEADNOTE

A registered consumer/owner who consciously permits a tenant to draw an unauthorised supply from the licensee's network abets the theft and is guilty under Section 135 read with Section 150 — and the abettor can be convicted even though the actual user has absconded and is never tried. “Consumer” in Section 2(15) reaches the owner (**Lokesh Chandela**), and the compulsory presumption in the third proviso to Section 135(1) convicts the owner who leads no evidence of lawful, metered use.

The offence was made out on proof of an unauthorised abstraction at the owner's premises. The Court set out the ingredients of Section 135(1), importing Section 24 IPC for “dishonestly,” and treated by bypassing the metering system — the premises' four installed meters standing with their outgoing supply disconnected while the second-floor load ran directly through a service cable joined with an illegal wire as a bypass of the metering system amounting to a dishonest abstraction under Section 135(1). On proof of that artificial means the third proviso's presumption of dishonest use arose.

The owner is a “consumer” under Section 2(15) and answerable for abstraction at the premises. Reproducing Section 2(15), the Court held that both the user and the owner/registered consumer fall within “consumer,” so Devanand was answerable once illegal abstraction was found at the premises — drawing support from **Lokesh Chandela v. State of NCT & Ors.** (Delhi HC, CrI. A. 479/2011).

The owner's conscious permission was abetment, and the user's absconding did not absolve the abettor. As registered consumer/owner, Devanand knew the premises had no lawful metered supply, yet permitted Jagdish to occupy and draw electricity through the unauthorised connection. That conscious allowance constituted abetment under Section 150, which carries the punishment of the principal offence. That Jagdish had absconded and was never arrested or tried did not absolve the abettor: the abettor's liability is independent of whether the principal is in the dock.

The absence of a public witness did not weaken the prosecution. No animosity of the officials was shown; on **Punjab State Electricity Board v. Ashwani Kumar**, 2010 (7) SCC 569, the official inspection report carries a presumption of regularity, and on **Sushil Sharma v. BSES Rajdhani Power Ltd.** (Delhi HC, CrI. A. 1060/2010), non-examination of an independent witness is no infirmity.

The presumption was compulsory, and settlement of the bill fortified the case. Following **Neeraj Dutt** (compulsory “shall presume”) and **Hiten P. Dalal** (prudent-man standard), the Court held that Devanand, having led no defence evidence and produced no paid bills (**Mukesh Rastogi**; Section 106 onus), failed to rebut the presumption; and the settlement of the Rs. 3,15,653/- bill and its deposit corroborated the theft rather than closing the criminal case.

INTERPRETATION OF THE ELECTRICITY STATUTES

ELECTRICITY ACT, 2003

Section 135(1)(a) — Theft of Electricity

The Court treated clause (a) — tapping or making a connection with a licensee’s overhead, underground or service lines/wires — as the operative limb, the case being one of direct hooking rather than meter tampering (clauses (b)–(e) having no factual foundation). As the Act does not define “dishonestly,” the Court imported Section 24 IPC and treated by bypassing the metering system — the premises’ four installed meters standing with their outgoing supply disconnected while the second-floor load ran directly through a service cable joined with an illegal wire as satisfying the requirement of dishonest intention.

Third Proviso to Section 135(1) — Presumption of Dishonest Use

Read as a reverse-onus clause: proof of an artificial or unauthorised means of abstraction raises a presumption of dishonest use “until the contrary is proved.” Reading it with the “shall presume” jurisprudence (*Neeraj Dutt*) and the rebuttal standard (*Hiten P. Dalal*), the Court held that the burden shifted to the accused to make innocence reasonably probable — a bare denial, without evidence of a lawful source or paid bills, could not discharge it.

HELD

The prosecution proved beyond reasonable doubt that no lawful metered supply existed at the inspected premises and that electricity was being abstracted through an unauthorised connection, which Devanand, as registered consumer/owner, consciously permitted. **Devanand is accordingly convicted under Section 135 read with Section 150 of the Electricity Act, 2003**, and is to be heard on the quantum of sentence.

SIGNIFICANCE

An owner-as-abettor conviction where the actual user (Jagdish) absconded and was never tried. Five propositions stand out:

- **An owner can be convicted of abetment even where the user has absconded.** The registered consumer/owner who consciously permits an (unarrested, untried) tenant to draw an unauthorised supply is guilty under Section 135 r/w Section 150; the principal’s absence from the dock does not absolve the abettor.
- **“Consumer” under Section 2(15) reaches the owner.** The owner cannot disown liability for illegal abstraction at the premises merely because a tenant was the user (*Lokesh Chandela*).
- **The reverse-onus presumption binds the owner-abettor.** Once the unauthorised means is proved, the owner must show lawful, metered use — paid bills under the Section 106 onus (*Mukesh Rastogi*) — failing which the compulsory presumption convicts.
- **Settlement corroborates guilt.** Settling and depositing the theft bill was read as conduct inconsistent with innocence, not neutral compromise.
- **A meter-bypass with disconnected meters is direct theft.** That four meters stood installed did not help the owner where their outgoing supply was disconnected and the load ran through a service-cable tap — the presence of dead meters underscored, rather than excused, the unauthorised abstraction.

- **A public witness is not essential.** Official inspection testimony suffices absent shown enmity (*Ashwani Kumar; Sushil Sharma*).

CITATIONS

Neither side argued from case law; every citation below is drawn from the Court's own reasoning.

CASE	PRINCIPLE CITED FOR	TREATMENT
<i>Punjab State Electricity Board v. Ashwani Kumar</i> 2010 (7) SCC 569	An inspection report prepared by Board officers in discharge of official duty carries a presumption of regularity; the onus lies on the consumer to rebut it by cogent evidence.	Relied on
<i>Sushil Sharma v. BSES Rajdhani Power Ltd.</i> Delhi HC, CrI. A. 1060/2010 (22.12.2010)	Non-examination of an independent/public witness is no infirmity where the inspecting officials are trustworthy and bear no enmity towards the accused.	Relied on
<i>Lokesh Chandela v. State of NCT & Ors.</i> Delhi HC, CrI. A. 479/2011	Both the user of electricity and the owner/registered consumer of the premises fall within "consumer" under Section 2(15), making the owner answerable for illegal abstraction found at the premises.	Relied on
<i>Neeraj Dutt v. State</i> SLP(CrI.) 6497/2020	"Shall presume" denotes a compulsory legal presumption which the Court is bound to draw until the fact is disproved.	Relied on
<i>Hiten P. Dalal v. Bratindranath Banerjee</i> 2001 (6) SCC 16	A statutory presumption need not be conclusively disproved; the accused must adduce evidence making the defence reasonably probable to a prudent man.	Relied on
<i>Mukesh Rastogi v. North Delhi Power Ltd.</i> 2007 (99) DRJ 108	The easiest rebuttal of the theft presumption is to produce paid electricity bills; under Section 106 of the Evidence Act the onus of proving lawful, metered use lies on the consumer.	Relied on

This summary is a condensed digest prepared for quick reference. It is not a substitute for the full text of the judgment and should not be relied upon for legal advice without verification against the original.